LAW & REGULATION CASE 016

2,185

court and tribunal decisions the database lists, April 2023 to October 2026

AI IN THE COURTS · CASE 016 · OCTOBER 2026

One researcher's database lists 2,185 court rulings on AI-hallucinated filings

A researcher's database lists 2,185 court decisions in which, he says, a court found or implied that a party relied on hallucinated content. More than half of its entries list a self-represented litigant, and about one entry in nine names a specific tool. Two state supreme courts show the range: in Nebraska the lawyer said he did not rely on AI and the court did not decide; in New Mexico the lawyer admitted using ChatGPT.

Evidence grade B, well supported Checked 11 Oct 2026
AAI-2026-016 · version 1 5 public sources

1 The short version

Damien Charlotin keeps a database of court and tribunal decisions which, he says, covers only cases where the court found or implied that a party relied on hallucinated content. As downloaded on 10 October 2026 it lists 2,185 decisions, the oldest from April 2023.

1 More than half of the entries list a self-represented litigant as the party involved; 865 list a lawyer, and 32 list a judge.

2 Only 234 entries name a specific tool. Most say the tool is "Implied" or "Unidentified", and the database itself warns that naming a tool does not necessarily mean that tool was responsible.

3 In Nebraska, a lawyer whose brief cited a case that does not exist said he did not rely on AI. The state's Supreme Court did not decide whether he had: it struck the brief, dismissed the appeal and referred him for discipline, saying its analysis was the same either way.

4 In New Mexico, the state's Supreme Court records that a lawyer admitted using ChatGPT for a brief with invented witnesses and testimony. The court held him in contempt, ordered him to pay $5,000 and referred him for discipline.

FACTS CHECKED IN THIS SECTION (14)

1. **F022** Damien Charlotin, who compiles the AI Hallucination Cases Database, says it covers decisions where AI use, "whether established or merely alleged", is addressed by a court or tribunal, but "does not cover mere allegations of hallucinations": only cases where the court found or implied that a party relied on hallucinated content. SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER
2. **F027** The AI Hallucination Cases Database, as downloaded on 10 October 2026, lists 2,185 decisions, dated from 14 April 2023 to 8 October 2026; one entry has no date. VERIFIED · INSPECTABLE RECORD
3. **F028** The database, as downloaded on 10 October 2026, lists "Pro Se Litigant" in its Party(ies) column, headed "Party Using AI" on its page, in 1,259 entries and "Lawyer" in 865; it lists government lawyers, prosecutors and others separately. VERIFIED · INSPECTABLE RECORD
4. **F029** The database, as downloaded on 10 October 2026, lists "Judge" in its Party(ies) column in 32 entries, 6 of them alongside another party. VERIFIED · INSPECTABLE RECORD
5. **F030** The database, as downloaded on 10 October 2026, names a specific tool in its AI Tool column in 234 of its 2,185 entries; 8 more hold another value such as "Unknown" or "Gen AI", 1,470 say "Implied", 455 say "Unidentified", and 18 are empty. VERIFIED · INSPECTABLE RECORD
6. **F039** The database's page notes that "the mention of a specific tool does not necessarily mean that tool was responsible for the hallucinations in question." SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER
7. **F004** The Nebraska Supreme Court records that the appellant's lawyer asserted he did not invent cases, did not rely on AI, and did not attempt to mislead the court. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
8. **F006** The Nebraska Supreme Court found the "Kennedy v. Kennedy" authority in the appellant's brief fictitious: it borrows the name of a real 2019 unpublished Nebraska Court of Appeals opinion that does not correspond to the citation given, and the court said the case relied on "is not a real case". SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
9. **F008** The Nebraska Supreme Court did not decide whether AI was used to prepare the appellant's brief; it said its analysis is the same either way. It described the case as involving "fictitious, potentially AI-generated" cases, holdings and quotations. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
10. **F011** In Prososki v. Regan the Nebraska Supreme Court struck the appellant's brief, dismissed his appeal, and referred his lawyer to the Counsel for Discipline of the Nebraska Supreme Court. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
11. **F014** The Supreme Court of New Mexico records that the lawyer acknowledged, in his written response and at oral argument, that he used ChatGPT to prepare the brief in chief. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
12. **F015** The Supreme Court of New Mexico records that the lawyer admitted the brief contained false testimony from wholly fabricated witnesses and misrepresented legal authority in two named New Mexico cases. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
13. **F019** The Supreme Court of New Mexico, with five justices concurring, found the lawyer in direct contempt, referred him to the Disciplinary Board, barred him from appearing before it pending that outcome, struck all briefing in the appeal, and appointed the Law Office of the Public Defender for his client. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
14. **F020** As a sanction for direct contempt, the Supreme Court of New Mexico ordered the lawyer to pay $5,000 to the State Bar of New Mexico Client Protection Fund. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER

B

EVIDENCE GRADE

Well supported

The two rulings were read whole, from copies the database hosts, not the courts' own records, and every count was made from the database file as downloaded on 10 October 2026, with the working kept. The counts show what the database lists, one researcher's coding of court decisions, not what happened in each court.

EXHIBIT 1

The numbers

2,185

court and tribunal decisions the database lists, April 2023 to October 2026

1,259

entries that list a self-represented litigant, against 865 that list a lawyer

About 1 in 9

entries that name a specific tool (234 of 2,185)

164

entries that record a professional sanction; 380 record a monetary penalty

FACTS CHECKED IN THIS SECTION (5)

1. **F027** The AI Hallucination Cases Database, as downloaded on 10 October 2026, lists 2,185 decisions, dated from 14 April 2023 to 8 October 2026; one entry has no date. VERIFIED · INSPECTABLE RECORD
2. **F028** The database, as downloaded on 10 October 2026, lists "Pro Se Litigant" in its Party(ies) column, headed "Party Using AI" on its page, in 1,259 entries and "Lawyer" in 865; it lists government lawyers, prosecutors and others separately. VERIFIED · INSPECTABLE RECORD
3. **F035** In the database as downloaded on 10 October 2026, a specific tool is named in about one entry in nine (234 of 2,185, 10.7 percent). VERIFIED · COMPUTED FROM F027, F030
4. **F030** The database, as downloaded on 10 October 2026, names a specific tool in its AI Tool column in 234 of its 2,185 entries; 8 more hold another value such as "Unknown" or "Gen AI", 1,470 say "Implied", 455 say "Unidentified", and 18 are empty. VERIFIED · INSPECTABLE RECORD
5. **F032** The AI Hallucination Cases Database, as downloaded on 10 October 2026, records a professional sanction in 164 entries and a monetary penalty in 380. VERIFIED · INSPECTABLE RECORD

EXHIBIT 2

Day by day

The database · Nebraska Supreme Court · Supreme Court of New Mexico

14 Apr 2023
The oldest decision the database lists

1071 DAYS

20 Mar 2026
Nebraska's Supreme Court strikes a brief with fictitious citations and refers the lawyer for discipline, without deciding whether AI was used

154 DAYS

21 Aug 2026
A New Mexico lawyer argues before the state's Supreme Court; the court records that he acknowledged using ChatGPT. Its contempt order states no date

48 DAYS

8 Oct 2026
The newest decision the database lists

2 DAYS

10 Oct 2026
The database's page and file are captured for this case: the page says 2,184 cases, the file holds 2,185

FACTS CHECKED IN THIS SECTION (9)

1. **F027** The AI Hallucination Cases Database, as downloaded on 10 October 2026, lists 2,185 decisions, dated from 14 April 2023 to 8 October 2026; one entry has no date. VERIFIED · INSPECTABLE RECORD
2. **F001** On 20 March 2026 the Nebraska Supreme Court filed its opinion in Prososki v. Regan, 321 Neb. 38 (No. S-25-295). SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
3. **F011** In Prososki v. Regan the Nebraska Supreme Court struck the appellant's brief, dismissed his appeal, and referred his lawyer to the Counsel for Discipline of the Nebraska Supreme Court. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
4. **F008** The Nebraska Supreme Court did not decide whether AI was used to prepare the appellant's brief; it said its analysis is the same either way. It described the case as involving "fictitious, potentially AI-generated" cases, holdings and quotations. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
5. **F013** On 21 August 2026 the lawyer appeared and argued before the Supreme Court of New Mexico on the misrepresentations in his brief. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
6. **F014** The Supreme Court of New Mexico records that the lawyer acknowledged, in his written response and at oral argument, that he used ChatGPT to prepare the brief in chief. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
7. **F019** The Supreme Court of New Mexico, with five justices concurring, found the lawyer in direct contempt, referred him to the Disciplinary Board, barred him from appearing before it pending that outcome, struck all briefing in the appeal, and appointed the Law Office of the Public Defender for his client. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
8. **F040** On the library's reading of the Supreme Court of New Mexico's order (D04), as of 10 October 2026, the order states no filing date; the only date it gives for the matter is the hearing, 21 August 2026, and it refers to the court's 2026-2027 term. UNKNOWN · RECORD SILENT AS OF 2026-10-10
9. **F036** The database's page, captured on 10 October 2026, states 2,184 cases identified and lists "Lawyer (864)" in its Party filter; the CSV downloaded the same evening lists 2,185 entries and "Lawyer" in 865. VERIFIED · INSPECTABLE RECORD

2

Where the accounts disagree

Both sides, side by side. We don't pick one: the public record doesn't settle it.

? Did the Nebraska lawyer use AI?

THE LAWYER, AS THE COURT RECORDS

He did not invent cases and did not rely on AI; the errors came from copying from Westlaw and filing the wrong draft.

THE NEBRASKA SUPREME COURT

It did not decide. It found the wrong-draft explanation not credible and said its analysis was the same either way.

The database lists this case under "Party Using AI", with the tool "Unidentified" and "Alleged: No", although the court did not decide whether AI was used.

? How many cases does the database hold?

THE DATABASE'S PAGE

2,184 cases identified so far, and "Lawyer (864)" in its Party filter.

THE DATABASE'S FILE, THE SAME EVENING

2,185 entries, 865 of them listing "Lawyer".

FACTS CHECKED IN THIS SECTION (10)

1. **F004** The Nebraska Supreme Court records that the appellant's lawyer asserted he did not invent cases, did not rely on AI, and did not attempt to mislead the court. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
2. **F003** The Nebraska Supreme Court records that the appellant's lawyer told it the brief's citations were "sloppy" from "copying and pasting . . . from Westlaw without verifying the official reporter." SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
3. **F005** The Nebraska Supreme Court records that the appellant's lawyer attributed the fictitious cases and quotations to a screen crack on his laptop and to filing the wrong draft of the brief. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
4. **F007** The Nebraska Supreme Court said the lawyer's explanation that the citations were "sloppy" from copying from Westlaw could account for a handful of citations but not the numerous fictitious quotations, nor how a few cases appear to be made up entirely, and it found his assertion that he filed the wrong draft lacks credibility. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
5. **F008** The Nebraska Supreme Court did not decide whether AI was used to prepare the appellant's brief; it said its analysis is the same either way. It described the case as involving "fictitious, potentially AI-generated" cases, holdings and quotations. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
6. **F041** The database, as downloaded on 10 October 2026, lists the Nebraska decision, Prososki v. Regan, with "Lawyer" in its Party(ies) column, headed "Party Using AI" on its page, "Unidentified" as the AI tool, and "Alleged: No", although the Nebraska Supreme Court did not decide whether AI was used. VERIFIED · R1 + R2 · 2 ORIGINS, 2 EXAMINERS
7. **F025** The database's page, as captured on 10 October 2026, states that 2,184 cases have been identified so far. SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER
8. **F036** The database's page, captured on 10 October 2026, states 2,184 cases identified and lists "Lawyer (864)" in its Party filter; the CSV downloaded the same evening lists 2,185 entries and "Lawyer" in 865. VERIFIED · INSPECTABLE RECORD
9. **F027** The AI Hallucination Cases Database, as downloaded on 10 October 2026, lists 2,185 decisions, dated from 14 April 2023 to 8 October 2026; one entry has no date. VERIFIED · INSPECTABLE RECORD
10. **F028** The database, as downloaded on 10 October 2026, lists "Pro Se Litigant" in its Party(ies) column, headed "Party Using AI" on its page, in 1,259 entries and "Lawyer" in 865; it lists government lawyers, prosecutors and others separately. VERIFIED · INSPECTABLE RECORD

3 In their own words

"We hold that the submission of fictitious authority to a court, whether through generative AI or not, can be resolved by application of our existing rules of professional conduct and court rules."

THE NEBRASKA SUPREME COURT

"Respondent acknowledged to the Court in his written response and oral argument that he used the generative artificial intelligence (AI) tool ChatGPT in the preparation of the brief in chief he filed with the Court"

THE SUPREME COURT OF NEW MEXICO

"The mention of a specific tool does not necessarily mean that tool was responsible for the hallucinations in question."

THE DATABASE'S PAGE

FACTS CHECKED IN THIS SECTION (3)

1. **F010** The Nebraska Supreme Court held that submitting fictitious authority to a court, whether through generative AI or not, can be resolved under its existing rules of professional conduct and court rules. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
2. **F014** The Supreme Court of New Mexico records that the lawyer acknowledged, in his written response and at oral argument, that he used ChatGPT to prepare the brief in chief. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
3. **F039** The database's page notes that "the mention of a specific tool does not necessarily mean that tool was responsible for the hallucinations in question." SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER

4 Still unknown

? Whether AI produced the fictitious citations in the Nebraska brief. The court did not decide, and the lawyer denied it.

? Which tool, if any, lies behind most entries: 1,925 of them say only "Implied" or "Unidentified".

? How many fake citations or uses of AI in court filings the database does not capture. The compiler says it does not track that wider universe.

? The date of the New Mexico order. It states none, and the database leaves the date blank.

FACTS CHECKED IN THIS SECTION (6)

1. **F008** The Nebraska Supreme Court did not decide whether AI was used to prepare the appellant's brief; it said its analysis is the same either way. It described the case as involving "fictitious, potentially AI-generated" cases, holdings and quotations.
   SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
2. **F004** The Nebraska Supreme Court records that the appellant's lawyer asserted he did not invent cases, did not rely on AI, and did not attempt to mislead the court. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
3. **F030** The database, as downloaded on 10 October 2026, names a specific tool in its AI Tool column in 234 of its 2,185 entries; 8 more hold another value such as "Unknown" or "Gen AI", 1,470 say "Implied", 455 say "Unidentified", and 18 are empty.
   VERIFIED · INSPECTABLE RECORD
4. **F024** Charlotin says the database does not track the wider universe of all fake citations or uses of AI in court filings.
   SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER
5. **F040** On the library's reading of the Supreme Court of New Mexico's order (D04), as of 10 October 2026, the order states no filing date; the only date it gives for the matter is the hearing, 21 August 2026, and it refers to the court's 2026-2027 term.
   UNKNOWN · RECORD SILENT AS OF 2026-10-10
6. **F037** The database's entry for the New Mexico contempt order (No. S-1-SC-40845) leaves its Date field empty.
   VERIFIED · INSPECTABLE RECORD

HOW TO CITE THIS CASE

Applied AI Case Study Library. “One researcher's database lists 2,185 court rulings on AI-hallucinated filings.” Case AAI-2026-016, version 1, checked 11 Oct 2026. https://danielwipert.github.io/ai.case.study/cases/2026/aai-2026-016-fabricated-legal-authority-court-sanctions/

Printed from the live case, where every statement links to its evidence.

IN CONTEXT

THEME

Law & regulation

SOURCES READ

▼ **5 documents**

1. AI Hallucination Cases Database (CSV download)
2. AI Hallucination Cases (database page)
3. Prososki v. Regan, 321 Neb. 38 (No. S-25-295)
4. Dispositional Order of Direct Contempt, State v. Sandoval (No. S-1-SC-40845)
5. AI in litigation: Update on Gen AI sanctions in 2026

PERIOD COVERED

14 Apr 2023 to 10 Oct 2026

EVIDENCE CUTOFF

10 October 2026

CHECKED

11 Oct 2026, version 1